

Calendar Lines # 6 – 7
Case Name Ying Wang vs The John Stewart Company et al.
Case No. 25CV469820
Motion to Compel (Line # 6) & Motion for Protective Order (Line # 7) The defendant The John Stewart Company and Joanna Flores (collectively “JSC”) filed a motion to compel responses to special interrogatories, set one and sanctions (Line #6). The plaintiff Ying Wang filed a motion for protective order to limit the number of interrogatories and scope and sanctions (Line #7). The Background portion set forth in Line #6 also applies to Line #7. <u>MOTION TO COMPEL (LINE #6)</u> I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a housing dispute. On July 7, 2025, Plaintiff Ying Wang (“Wang”) filed a Complaint against Defendants The John Stewart Company, Joanna Flores, Betty Ann Gardens Leasing Office, and HomeFirst Services of Santa Clara County (collectively “Defendants”) for statutory and common law violations, including, negligence, violation of Fair Housing Act, violation of Americans with Disability Act, intentional infliction of emotional distress, constructive eviction, breach of duty, invasion of property, civil conspiracy and relational, disability and racial discrimination and declaratory and injunction relief. (Complaint). B. RELEVANT PROCEDURAL BACKGROUND On August 14, 2025, Defendants JSC propounded written discovery including special interrogatories (“SPROG”), set one, consisting of 77 interrogatories on Plaintiff Wang. (Declaration of Kennick, at p. 7; Exhibit A). JSC asserts that responses were due on September 18, 2025. (<i>Id.</i>) On September 1, 2025, Plaintiff Wang served a motion for protective order regarding the special interrogatories, but no hearing date was provided. (<i>Id.</i>; Exhibit B). On September 11, 2025, the plaintiff served an application for a protective order, but no hearing date was provided. (<i>Id.</i>) When the Defendants JSC did not receive responses to discovery, it reached out to the plaintiff and granted a two-week extension. (<i>Id.</i>) By October 2025, Defendant JSC did not receive any responses to the SPROG. The motion was filed on October 14, 2025, Defendant JSC filed this motion to compel SPROGs, set one and sanctions. The motion was accompanied by a proof of service via mail and electronic service to the plaintiff in proper on that same day. The plaintiff opposes the motion as procedurally defective, premature, excessive, duplicative, overbroad, and in violation of the statutory limits, and filed opposition papers on April 15, 2026. (Plaintiff’s Opposition, p. 2-3). Plaintiff denies to be evading discovery and points to efforts to file a protective order pertaining to the SPROG in September 2025. (<i>Id.</i>, at p. 3; Declaration of Wang, at p. 2). Plaintiff contends that multiple defendants in this matter have propounded discovery with Defendant JTC propounding 77 interrogatories and Defendant HomeFirst propounding 60 interrogatories, citing this exceeds the statutory limit. (<i>Id.</i>, at p. 4). Plaintiff contests that defendants refused to reduce the number of interrogatories. (Declaration of Wang, at p. 2). Plaintiff asserts that defendants fail to provide sufficient justification, burdensome, excessive and constitutes a misuse of discovery. (<i>Id.</i>, at p. 4-6). In response to Defendants John Stewart’s motion for sanctions, the plaintiff asserts to have acted in good faith and thus deems the request improper. Rather, the plaintiff seeks \$1,000.00 in monetary sanctions against the Defendants conduct for unnecessary motion practice. Defendant JTC attached a declaration citing its need to exceed the 35 SPROG that was attached to its SPROG, set one. (Declaration of Kennick, at p.1; Exhibit A). Defense argues that the additional 42 SPROG in set one is warranted under Code of Civil Procedure section 2030.070(a) “. . . because of the quality and complexity of the issues involved in this case and because of the expedience of using this method of discovery. The Interrogatories

being propounded in this set of Special Interrogatories are not being used for an improper purpose, such as to harass the party or the attorney for the party to whom it is directed or to cause unnecessary delay or needless increase in the cost of litigation.” (Declaration of Kennick, at p.1).

This motion was originally set for hearing on April 28, 2026, but the court found that the parties had not sufficient met-and-conferred regarding the motion pursuant to Code of Civil Procedure section 2016.040 and continued this motion to this date and ordered parties to meet-and-confer. The Court noted that the plaintiff had a duty to respond to at least the first 35 SPROG. Since that date, the parties met-and-conferred and filed a joint statement on June 9, 2026, providing an update on the outstanding discovery at issue.

The Court has carefully reviewed the Defendant JSC’s moving papers including a notice of motion memorandum of points and authorities, Declaration of Shelby Kennick in support of the defendant’s moving papers with Exhibits A-B attached (totaling 25 pages); the plaintiffs opposition (totaling 6 pages); Declaration of Ying Want in support of Opposition to the motion and attached Exhibits A-F (totaling 33 pages); Joint Statement regarding the motion (totaling 6 pages); and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL REQUIREMENTS

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1)). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

B. MOTION TO COMPEL RESPONSES

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; see also, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the

discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422). Under Code of Civil Procedure section 2030.030, a party may propound 35 specially prepared interrogatories that are relevant to the subject matter of the pending action. Any additional number of interrogatories must be accompanied a declaration under section 2030.050, otherwise a party needs only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance under section 2030.240 on the ground that the limit has been exceeded.

III. ANALYSIS

Here, the parties filed a joint statement regarding the outstanding SPROGs at issue. (Parties Joint Statement, at p. 2). After meeting and conferring on June 3, 2026, the parties stipulated that the defendant will limit the initial 77 SPROGs to 47. (*Id.*) While Defendant JTC does not concede that the requests are duplicative or burdensome, parties reached a good faith agreement to limit the SPROGS requested. (*Id.*) Parties stipulated that the plaintiff would provide responses to SPROGs, set one, Nos: 1-18, 21-22, 25-26, 29-30, 33-34, 37-38, 41-42, 44-45, 47-48, 50-51, 54-55, 57-58, 60, 63, and 73-77. (*Id.*).

On June 5, 2026, Plaintiff Wang requested that Defendant JTC withdraw or consolidate SPROG Nos. 42, 45, 48, 50, and 63. (*Id.*) The defendant refused to withdraw the SPROGs that parties earlier agreed to on June 3, but did agree to limit the scope of SPROG No. 63 to seven (7) years prior to Plaintiff Wang’s tenancy and relating to claims at issue. (*Id.*).

Thus, the following SPROGs remain unopposed and parties stipulate that the plaintiff will provide responses, Nos: 1-18, 21-22, 25-26, 29-30, 33-34, 37-38, 41, 44, 47, 51, 54-55, 57-58, 60, 73-77.

The SPROGs that were previously stipulated by the parties and now are opposed by the plaintiff involve: Nos.: 42, 45, 48, 50, and 63. The Court reviews the remaining five SPROGS at issue and upon review of the briefing and analysis, the Court GRANTS and DENIS the SPROGS specified below:

SPROG No. 42

Please IDENTIFY any and all documents with sufficient specificity, sufficient to form the basis for a request to produce and inspect pursuant to CCP §2030.010, which support YOUR contention of Invasion of Privacy.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the seventh cause of actions, invasion of privacy in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 45

Please IDENTIFY any and all documents with sufficient specificity, sufficient to form the basis for

a request to produce and inspect pursuant to CCP §2030.010, which support YOUR contention of Civil Conspiracy and Retaliation.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the eighth cause of actions, civil conspiracy and retaliation in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 48

Please IDENTIFY any and all documents with sufficient specificity, sufficient to form the basis for a request to produce and inspect pursuant to CCP §2030.010, which support YOUR contention of Disability and Racial Discrimination.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the ninth cause of actions, disability and racial discrimination (ADA, FEHA, and FHA) in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 50

Please state all facts that support YOUR contention of Declaratory and Injunctive Relief.

GRANTED. The request regarding the civil conspiracy and retaliation is relevant and reasonably calculated to lead to the discovery of admissible evidence. The claims are asserted as the tenth cause of actions, declaratory and injunctive relief in the Complaint and are at issue in the case. The Court finds the request relevant and not overly broad.

SPROG No. 63

Please identify each and every pre-existing medical condition that YOU suffered from prior to the YOUR tenancy at the PREMISES.

GRANTED in part and DENIED in part. The Court finds the request to be overbroad in relation to timeframe and scope, vague, and unduly burdensome. The Court will limit the scope of this request to five (5) years prior to Plaintiff's tenancy to the present in terms of time. The Court will limit the scope for medical conditions (physical and emotion) as alleged in the Complaint and at issue in this case.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). "But where a violation is willful, preceded

by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Defendant JTC seeks sanctions and attorney’s fee in the amount of \$985.00 against the plaintiff based on plaintiff’s failure to provide responses to special interrogatories without substantial justification. Defense seeks a total of five hours of time at the hourly rate of \$185.00: two hours to prepare the present motion; estimated one hour to attend the hearing; estimated one hour to review the opposition brief; and estimated one hour to prepare and file a reply brief. (Declaration of Kennick, at p. 8). Defendant JTC asserts that the plaintiff failed to respond to any of the SPROGs, set one that were propounded. (Parties’ Joint Statement, at p. 2).

Plaintiff Wang repudiates the defendant’s assertion that the plaintiff refused to respond to discovery. (*Id.*). Rather, the plaintiff asserts that genuinely disputed the number and scope of discovery propounded under Code of Civil Procedure section 2030.030 and believed the SPROGs to exceed the number allowed, were duplicative, cumulative, compound and overlapping. (*Id.*, at p. 3). Plaintiff points to the fact that she filed a motion for protective order concerning the excessive interrogatories. (*Id.*). Plaintiff continues to assert that she agreed to provide substantive responses to discovery after meeting-and-conferring, but continues to dispute SPROGS Nos. 42, 45, 48, and 50. (*Id.*). In response, the plaintiff seeks sanctions against Defendant JTC in the amount of \$1,000.00 for improper discovery. (Plaintiff’s Opposition, at p. 6). The motion for sanctions by the plaintiff against Defendant JTC is DENIED.

Based on the Court’s granting the motion to compel and the plaintiff not providing any responses to SPROGS to date, the Court will GRANT the motion for sanctions against the plaintiff in the amount of \$430.00 based on 2 hours of attorney time at the rate of \$185.00 per hour for preparation and filing of the motion. No reply brief was submitted, the court will not award time for estimated prospective time. The sanctions also include \$60.00 in filing fees.

V. CONCLUSION

Based on the foregoing, the Court orders as follows: The motion to compel responses to SPROG, set one, Nos.: 1-18, 21-22, 25-26, 29-30, 33-34, 37-38, 41, 44, 47, 51, 54-55, 57-58, 60, 73-77 was stipulated by the parties, remains unopposed, and is GRANTED. The plaintiff is ORDERED to provide verified responses within twenty (20) days of this hearing.

The motion to compel responses to SPROG, set one, Nos.: 42, 45, 48, 50, and 63 was stipulated by the parties, but now opposed by the plaintiff. Upon review of the SPROGs Nos. 42, 45, 48, and 50 is GRANTED. SPROG No. 63 is GRANTED in part and DENIED in part. The Court finds the request to be overbroad in relation to timeframe and scope, vague, and unduly burdensome. The Court will limit the scope of this request to five (5) years prior to Plaintiff’s tenancy to the present in terms of time. The Court will limit the scope for medical conditions (physical and emotion) as alleged in the Complaint and at issue in this case. The plaintiff is ORDERED to provide verified responses within twenty (20) days of this hearing.

Based on the Court’s granting the motion to compel and the plaintiff not providing any responses to SPROGS to date, the defendant JTC’s motion for sanctions against the plaintiff is GRANTED. However, the requested amount of \$985.00 is DENIED. The Court will award sanctions for attorney’s fees and costs in the amount of \$430.00.

The Court will prepare the formal Order.

MOTION FOR PROTECTIVE ORDER (LINE #7)

I. BACKGROUND

See Background section in Line #6.

On October 14, 2025, Plaintiff Ying Wang (“Wang”) filed a motion for protective order seeking to limit the number of interrogatories propounded by Defendant John Stewart Company and Joanna Flores (“JSC”) and Homefirst Services of Santa Clara (“Homefirst”) (collectively “Defendants”) in this matter. Plaintiff asserts that Defendants have propounded nearly 150 special interrogatories (“SPROG”). (Plaintiff’s motion, p. 2).

The motion was accompanied by a proof of service indicating electronic service on that same day.

On June 5, 2026, Defendant Homefirst filed an opposition to the plaintiff’s motion along with a Declaration of Umid A. Babojanov in support of the defense’s opposition. Defendant Homefirst avers that the plaintiff’s motion is untimely as the motion for protective order was filed more than sixty days after the plaintiff’s responses to Defendant Homefirst SPROGs were due. (Defendant Homefirst’s Opposition, at p. 4). Homefirst also asserts that additional SPROGs were propounded with a declaration stating the need based on the complexity of the case or to expedient using discovery in accordance with Code of Civil Procedure section 2030.040. (*Id.*). Homefirst asserts that the sixty SPROGs are warranted based on the scope of Plaintiff’s Complaint. (*Id.*, at p. 5-6).

Defendant JSC did not file an opposition brief. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 10 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). However, the Court notes that subsequently, Plaintiff Wang and Defendant JSC met-and-conferred and reached a stipulation on outstanding SPROGs at issue and the protective order as to Defendant JSC is moot by way of the stipulated discovery and court’s ruling in Defendant JSC’s motion to compel discovery SPROGs, set one (Line #6).

On June 16, 2026, the plaintiff filed a reply brief to Defendant Homefirst’s opposition.

The Court has carefully reviewed Plaintiff Wang’s moving papers including a notice of motion memorandum of points and authorities (totaling 5 pages); Declaration of Ying Wang in support of the moving papers with Exhibits A-C attached (totaling 30 pages); Defendant Homefirst’s opposition and Declaration of Umid A. Babojanov in support of the defense’s opposition (totaling pages); Plaintiff’s reply (totaling 8 pages); Plaintiff’s Declaration in support of the reply and attached A – E (totaling 19 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.030(a)(1) a party may propound to another party “Thirty-five specially prepared interrogatories that are relevant to the subject matter of the pending action.” Subdivision (b) provides that, “[e]xcept as provided in Section 2030.070, no party shall, as a matter of right, propound to any other party more than 35 specially prepared interrogatories.”

Code of Civil Procedure section 2030.040 permits a party to propound ***more than*** 35 special interrogatories with a supporting declaration of necessity that includes the following:

“(a) Subject to the right of the responding party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a

greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

- (1) The complexity or the quantity of the existing and potential issues in the particular case.
- (2) The financial burden on a party entailed in conducting the discovery by oral deposition.
- (3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.

(b) If the responding party seeks a protective order on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.”
(Emphasis added).

The requirements for the declaration for additional discovery, requiring “a declaration containing substantially the following. . .” is set forth in Code of Civil Procedure section 2030.050, which includes a paragraph stating:

“4. I have previously propounded a total of _____ interrogatories to this party, of which _____ interrogatories are not official form interrogatories....

“8. This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because _____ (Here state each factor described in Section 2030.040 that is relied on, as well as the reasons why any factor relied on is applicable to the instant lawsuit).”

“The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

- (1) That the set of interrogatories, or particular interrogatories in the set, need not be answered.
- (2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted.”

With respect to protective orders generally, the burden of showing good cause is ordinarily on the party seeking the protective order. (*Beverly Hills Nat. Bank & Trust Co. v. Superior Court* (1961, 2nd Dist). 195 Cal.App. 2d 861, 866-867). The granting of a protective order is within the discretion of the trial court. (*Id*). The granting or denial of a protective order is reviewed for abuse of discretion. (*Meritplan Insurance Co. v. Superior Court* (1981) 124 Cal.App.3d 237, 242). When the record shows facts on which the trial court exercised its discretion, this exercise will not be disturbed on appeal. (*Foster v. Gillette Co.* (1979) 100 Cal.App.3d 569, 578).

III. ANALYSIS

Defendant Homefirst served the plaintiff with a total of 60 SPROGs. Plaintiff correctly asserts that this exceeds the 35 SPROGs allowed under Code of Civil Procedure section 2030.050. However, Defendant submitted a declaration of necessity outlining why additional interrogatories are warranted under Code of Civil Procedure 2030.040. (Homefirst’s opposition, at p. 4).

The Court finds that Defendant Homefirst propounded 60 SPROGs, which is more than the 35 limit under section 2030.030, but submitted a “Declaration for Additional Discovery” that was attached to the SPROGS in compliance with section 2030.050. Specifically, the defendant included the following pertinent paragraphs:

3. This set of interrogatories will cause the total number of specially prepared interrogatories propounded to the party to whom they are directed to exceed the number of specially prepared interrogatories permitted by Section 2030.030 of the Code of Civil Procedure.

4. Defendants have previously propounded a total of 0 specially prepared interrogatories.
5. This set of interrogatories contains a total of 60 specially prepared interrogatories.
6. I am familiar with the issues and the previous discovery conducted by all of the parties in the case.
7. I have personally examined each of the questions in this set of interrogatories.
8. This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because of the complexity of the issues presented and the expedience of using this method of discovery.

(Exhibit A, attached to the defendant's opposition, p. 23).

Defendant Homefirst asserts that the additional SPROGs are warranted because of the complexity of the issues and expedience of the discovery method. (*Id.*, at p. 5). Homefirst avers that the SPROGs are necessary based on the scope of the plaintiff's complaint that asserts ten separate causes of action asserting multiple legal theories arising under Federal and State Law, including: housing discrimination, disability discrimination, racial discrimination, ADA violations, retaliation, conspiracy, privacy violations, negligence, emotional distress, constructive eviction, RRH/PSH program violations, physical injury, mental injury, medical damages, punitive damages, declaratory relief, and injunctive relief. (*Id.*, at p. 5-6; Complaint).

Further, Homefirst asserts that the plaintiff seeks recovery for medical expenses, physical suffering, emotional distress, loss of employment, loss of housing opportunities, and punitive damages. (Homefirst's opposition, at p. 6). Plaintiff objects to interrogatories seeking information regarding her physical and mental health conditions, which Defendant Homefirst avers lacks merit. (*Id.*, at p. 8). By alleging the following medical conditions: physical deterioration; lung pain; vitamin deficiencies; depression; traumatic brain injury; vascular brain disease; anxiety attacks; emotional distress; suicidal ideation; and loss of employment, the defense argues that Plaintiff has put her medical condition directly at issue. (*Id.*). The defendant asserts that it is entitled to relevant discovery as to the nature of Plaintiff's injuries; the existence of preexisting conditions; the identity of healthcare providers; medical causation; alternative causes of injury; and the extent of claimed damages based on the plaintiff seeking recovery for physical injuries, emotional distress, medical expenses, and other personal injury damages. (*Id.*).

Given the expansive scope of the prayers for relief alleged in the plaintiff's Complaint, Homefirst seeks discovery relating to the causes of actions and allegations. (*Id.*). Defendant Homefirst asserts the SPROGS are narrowly tailored to seek relevant evidence that is reasonably calculated to lead to the discovery of admissible evidence. Specifically, Homefirst asserts that the SPROGS seek three categories of information: (1) facts supporting allegations; (2) witnesses supporting allegations; and (3) documents supporting allegation. (*Id.*). Defendant Homefirst avers that the SPROGS are contention interrogatories that are expressed authorized under California law. (*Id.*, at p. 7). Homefirst also emphasize that the plaintiff fails to identify a single SPROG as privileged, irrelevant, unintelligible, impossible to answer, or unduly burdensome, but rather asserts that the number of SPROGS propounded exceeds 35. (*Id.*). Defendant Homefirst argues that California law is clear that self-represented parties are held to the same procedural rules and discovery obligations as represented parties. Thus, defense avers that the plaintiff cannot assert that discovery is burdensome due to her self-representation. (*Id.*, at p. 9).

The Court does note that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247). A self-represented litigant is not entitled to any

greater consideration than other litigants and attorneys. (*Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them]). The fact that Plaintiffs are self-represented litigants does not relieve them of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.090(d): “The court shall impose a monetary sanction...against any party, person or attorney who unsuccessfully makes or opposes a motion for a protective order under this section, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Defendant Homefirst seeks sanctions in the total amount of \$1,125.00 against the plaintiff, should Homefirst prevail in opposing the plaintiff’s motion for protective order absent substantial justification. (Declaration of Babojanov, at p. 12). Homefirst’s counsel, Umid A. Babojanov attests that his hourly rate is \$225.00 and that he spent approximately five hours reviewing, researching, preparing and drafting an opposition, Declaration, and exhibits, as well as preparing a motion for sanctions. (*Id.*). Defense argues that the plaintiff’s motion is based on a mistaken interpretation of the law, specifically that SPROGs are limited to 35 interrogatories under Code of Civil Procedure section 2030.050; the plaintiff ignored the declaration of necessity served with the SPROGS pursuant to Code of Civil Procedure section 2030.040; the plaintiff failed to identify any improper SPROG; the untimely filing of the motion for protective order; and the defendant having incurred attorney’s fees and costs in defending against the plaintiff’s motion for protective order, which lacked legal and factual merit. Defendant Homefirst seeks in sanctions against the plaintiff. (*Id.*, at p. 11).

Plaintiff opposes the defendant’s request for sanctions and asserts to have acted with substantial justification in seeking the protective order. (Plaintiff’s reply, p. 3). Plaintiff emphasizes that the violation lies in the defendant serving more than 35 SPROGs. (*Id.*, at p. 3). Plaintiff repudiates the defendant’s claim that there was a delay in seeking relief. (*Id.*, at p. 2; Declaration of Wang, at p. 2; Exhibits A-B). Plaintiff avers that the interrogatories are repetitive and duplicative. (*Id.*, at p. 3).

The Court notes that the defendant Homefirst complied with Code of Civil Procedure section 2030.050 for propounding SPROGS. The plaintiff based on a mistake of law and fact filed a motion for a protective order that required the defendant to expend time and costs to oppose the motion. However, based on the straightforward nature of the motion, the court will reduce the number of hours requested from five to 1.5 hours at the hourly rate of \$225.00. Thus, the prevailing party, Defendant Homefirst is awarded \$337.50 in sanctions against the plaintiff.

V. CONCLUSION

Based on the foregoing, the plaintiff’s motion for a protective order is DENIED.

Based on section 2030.090(d), the Court will award sanctions in the amount of \$337.50 to Defendant Homefirst and against the plaintiff for filing an unsuccessful motion based on a mistake of law and fact, as well as the totality of the circumstances set forth in the motion. The plaintiff is ORDERED to pay the sanctions within thirty (30) days of this Order.

The Court will prepare the formal Order.

Calendar Line # 8
Case Name Diana Guadalupe Chiapana vs Jaspinder Grewal et al.
Case No. 25CV470037
Demurrer Before the court is defendants’ demurrer to complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. BACKGROUND In 2019, Dominic DeBiaso pursued his former employer, Care Intranet Inc. (“CII”), for unpaid wages. (Complaint, ¶4). On February 26, 2019, a hearing was held at the offices of the California Labor Commissioner. (Complaint, ¶5). Defendant Puneet D. Grewal (“Puneet”)²³, represented by counsel, was found not individually liable and was dismissed. (Complaint, ¶¶6 – 7). Defendant Jaspinder P. Grewal (“Jaspinder”) was not served in the Labor Commissioner matter. CII was served, but did not put on a defense. (Complaint, ¶10). The Labor Commissioner issued an “Order, Decision or Award” on May 8, 2019 in favor of Dominic DeBiaso and against CII. (Complaint, ¶11 and Exh. 1). Judgment based upon the Labor Commissioner’s Order was entered in Santa Clara County Superior Court on July 22, 2019 in the total amount of \$36,203.77 (“Judgment”) in case number 19CV352304 (“Underlying Action”). (Complaint, ¶12 and Exh. 2). On November 9, 2020, the original judgment creditor, Dominic DeBiaso, transferred and assigned all rights, title, and interest in the Judgment to Phillip Erkenbrack. (Complaint, ¶13). On November 8, 2023, Phillip Erkenbrack transferred and assigned all rights, title, and interest in the Judgment to plaintiff Diana C. Guadalupe Chipana dba Wealth Recovery Solutions (“Plaintiff”). (Complaint, ¶14). No money has been paid on the Judgment and, as of May 18, 2025, the balance has risen to \$57,301.14 with interest continuing to accrue at 10% per annum. (Complaint, ¶¶15 – 16). Plaintiff now brings a separate and independent action against defendants Jaspinder and Puneet (collectively, “Grewals” or “Defendants”) on an alter ego theory to enforce the prior Judgment against the corporation, CII. On July 8, 2025, Plaintiff filed a verified complaint against defendant Grewals asserting a single cause of action “For Alter Ego Liability to Add Defendants Jaspinder P. Grewal and Puneet D. Grewal as Additional Judgment Debtors.” On October 14, 2025, defendant Grewals filed the motion now before the court, a demurrer to Plaintiff’s Complaint. II. LEGAL STANDARD Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)).

²³ The court refers to defendants by their first names for the sake of clarity and means no disrespect.